

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                              |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|--------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>David Noriega                    | Team:<br>Team # 3                                            | CCRB Case #:<br>201004720 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 04/08/2010 12:10 AM | Location of Incident:<br>East 167th Street and Morris Avenue | 18 Mo. SOL<br>10/8/2011   | Precinct:<br>44                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Fri, 04/09/2010 1:41 PM  | CV Reported At:<br>CCRB                                      | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 04/09/2010 1:41 PM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Alexis Dejesus  | 01421  | 946903 | BX IRT  |
| 2. SGT Johnny Napoleon | 03120  | 921622 | 044 PCT |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. POM John Kim    | 04935     | 947133 | BX IRT   |
| 2. POM Ramon Reyes | 02147     | 947395 | BX IRT   |

| Officer(s)              | Allegation                                                                  | Investigator Recommendation |
|-------------------------|-----------------------------------------------------------------------------|-----------------------------|
| A . SGT Johnny Napoleon | Abuse: Sgt. Johnny Napoleon authorized the frisk of § 87(2)(b)              | A . Substantiated           |
| B . POM Alexis Dejesus  | Force: PO Alexis DeJesus used physical force against § 87(2)(b)             | B . Unsubstantiated         |
| C . POM Alexis Dejesus  | Abuse: PO Alexis Dejesus searched § 87(2)(b)                                | C . Unsubstantiated         |
| D . SGT Johnny Napoleon | Abuse: Sgt. Johnny Napoleon authorized the search of § 87(2)(b)'s backpack. | D . Substantiated           |
| E . POM Alexis Dejesus  | Abuse: PO Alexis Dejesus did not obtain medical treatment for § 87(2)(b)    | E . Unsubstantiated         |

## Case Summary

§ 87(2)(b) filed this complaint by telephone with the CCRB on April 9, 2010.

On April 8, 2010, at approximately 12:10 a.m., on East 167 Street and Morris Avenue in the Bronx, § 87(2)(b) was approached by Sgt. Johnny Napoleon of the 44<sup>th</sup> Precinct and PO Alexis DeJesus of the Bronx Impact Response Team. § 87(2)(b) was ultimately arrested § 87(2)(a) 160.50 § 87(2)(b). The following allegations emerged from the interaction:

- **Allegation A – Abuse of Authority:** Sgt. Johnny Napoleon authorized the frisk of § 87(2)(b) § 87(2)(g). It is recommended that **Allegation A** be closed as **substantiated**.
- **Allegation B – Force:** PO Alexis DeJesus used physical force against § 87(2)(b) § 87(2)(g). It is recommended that **Allegation B** be closed as **unsubstantiated**.
- **Allegation C – Abuse of Authority:** PO Alexis DeJesus searched § 87(2)(b) § 87(2)(g)'s person. It is recommended that **Allegation C** be closed as **unsubstantiated**.
- **Allegation D – Abuse of Authority:** Sgt. Johnny Napoleon authorized the search of § 87(2)(b) § 87(2)(g)'s backpack. It is therefore recommended that **Allegation D** be closed as **substantiated**.
- **Allegation E – Abuse of Authority:** PO Alexis DeJesus refused to obtain medical treatment for § 87(2)(b) § 87(2)(g). It is recommended that **Allegation E** be closed as **unsubstantiated**.

## Results of Investigation

### Civilian Statements

**Complainant:** § 87(2)(b)

*Black male, § 87(2)(b), § 87(2)(b) black hair, brown eyes.*

### Statements to Medical Personnel

§ 87(2)(a) PBH § 18(6)

### CCRB Testimony

§ 87(2)(b) provided a telephone statement upon filing his complaint on April 9, 2010 [Encl. C 1-2]. He was interviewed at the CCRB on April 22, 2010 [Encl. C 3-8], and viewed photo arrays at the CCRB on October 12, 2010 [Encl. C 9-13]. § 87(2)(g) in his initial phone statement to the CCRB, § 87(2)(b) alleged that an officer told him to “get on the fucking wall.” § 87(2)(b) did not make this allegation in any subsequent statements.

At approximately midnight between April 7 and April 8, 2010, § 87(2)(b) was walking by himself on East 167 Street near Morris Avenue in the Bronx. He was going to catch a bus home

to Harlem. § 87(2)(b) was carrying a backpack with approximately 40 copied DVD's; he stated to the CCRB that these movies were for his personal use and that he did not intend to sell them. § 87(2)(b) was wearing a grey hooded sweatshirt, which he considered appropriate for the weather. As he was walking, a marked RMP pulled up beside him and three uniformed officers emerged; these officers were identified by the investigation as Sgt. Johnny Napoleon, PO Alexis DeJesus and PO Ramon Reyes. PO DeJesus immediately approached § 87(2)(b) grabbed him by the upper body, and slammed him against a wall, such that § 87(2)(b)'s right shoulder made contact with the wall. § 87(2)(b) did not resist, but asked, "What's going on?"

PO DeJesus then questioned § 87(2)(b) about where he was going, and also about the sweatshirt he was wearing. § 87(2)(b) stated he was wearing the sweatshirt because he believed it to be cold outside. § 87(2)(b) also recalled hearing PO DeJesus say something about a recent shooting in the area. PO DeJesus then turned § 87(2)(b) around and began to frisk his outer clothing. PO DeJesus also inserted his hands into all of § 87(2)(b)'s pockets, removing his cell phone and keys. (During this time, PO Reyes and Sgt. Napoleon were standing nearby.) PO DeJesus, who upon the initial stop had taken § 87(2)(b)'s backpack off his back and placed it on the ground, then began to search the backpack. PO DeJesus did not ask for permission to search the bag. He opened the bag's main compartment and rummaged through the copied DVD's. PO DeJesus then handcuffed § 87(2)(b) and led him towards the police car, at which point he pushed § 87(2)(b) forcefully against the RMP, such that § 87(2)(b)'s right shoulder made contact with the car frame. Due to the impact with the wall and the RMP, § 87(2)(b)'s shoulder was in pain. § 87(2)(b) offered no physical resistance but repeatedly protested his arrest, saying, "What did I do?" PO DeJesus and the other officers did not respond to his questions.

Shortly thereafter (before § 87(2)(b) was placed in the RMP), approximately three additional uniformed police officers arrived on foot. § 87(2)(b) did not recall the appearance of these officers. These officers conferred with the original three, and § 87(2)(b) was then placed in the RMP and transported to the 44<sup>th</sup> Precinct stationhouse with Sgt. Napoleon, PO DeJesus and PO Reyes still in the vehicle. En route to the precinct, § 87(2)(b) asked PO DeJesus directly if he could receive medical treatment – his shoulder was in pain and he wanted to ensure nothing was wrong with it. PO DeJesus told him to wait until they got to the precinct. Once at the stationhouse, § 87(2)(b) once again asked PO DeJesus for medical attention, but PO DeJesus told him to wait until his arrest was processed. § 87(2)(b) was then transferred to the custody of a different officer whom he did not recall seeing on the scene, identified by the investigation as PO John Kim of the Bronx Impact Response Team. PO Kim processed § 87(2)(b)'s arrest. § 87(2)(b) did not ask PO Kim for medical attention, having concluded that the officers were unwilling to obtain it for him. PO Kim informed § 87(2)(b) that he was arrested § 87(2)(a) 160.50. § 87(2)(b) PO Kim transported § 87(2)(b) to Bronx Central Booking. However, before seeing a judge, PO Kim told § 87(2)(b) he was free to leave, and no criminal case emerged from the incident. On § 87(2)(b), § 87(2)(b) visited § 87(2)(b) in Manhattan, where swelling to his right shoulder was documented.

During his photo array viewing, § 87(2)(b) conclusively identified PO DeJesus as the primary subject officer. § 87(2)(b) did not recognize any officers in the photo array containing PO Reyes.

### **Attempts to Contact Civilians**

The undersigned investigator conducted a canvas of the incident location for witnesses and video footage from surrounding commercial establishments on May 6, 2010. No witnesses or video footage were located [Encl. I 1].

## **NYPD Statements:**

### **Subject Officer: SGT. JOHNNY NAPOLEON**

- *Black male, § 87(2)(b) black hair, brown eyes.*
- *44<sup>th</sup> Precinct Impact sergeant, on a tour from 5:15 p.m. on April 7, 2010 until 2:12 p.m. on April 8, 2010, in uniform. At the time of the incident Sgt. Napoleon was in a marked RMP with PO DeJesus and PO Reyes.*

### **Memo Book**

In his memo book [Encl. D 5-6], Sgt. Napoleon documented that one male was stopped at East 167 Street and Morris Avenue, and indicated an arrest by PO DeJesus (though the arrest was later assigned to PO Kim). The times on Sgt. Napoleon's memo book entries are not legible.

### **CCRB Testimony**

Sgt. Napoleon was interviewed at the CCRB on July 29, 2010 [Encl. D 5-6].

Shortly after midnight on April 8, 2010, Sgt. Napoleon, PO DeJesus and PO Reyes saw § 87(2)(b) walking in the vicinity of East 167 Street and Morris Avenue. The officers were standing outside of their RMP at the time of the initial observation. § 87(2)(b) was wearing a heavy hooded sweatshirt underneath a jacket and carrying a backpack. Sgt. Napoleon stated that this clothing appeared bulky, leading him to believe he may have had additional layers underneath. Sgt. Napoleon found this amount of clothing suspicious: the night was unusually warm (over 80°F) and most people in the area were wearing short sleeves. Sgt. Napoleon indicated that heavy, bulky clothing that is inappropriate for the temperature is frequently considered a sign that an individual is concealing a weapon. Sgt. Napoleon also indicated that the vicinity of the incident location is a very high-crime area, largely due to a feud between two gangs that was ongoing at the time, leading to frequent shootings in the area. Sgt. Napoleon stated that he made the decision to stop § 87(2)(b) and that this decision was based on § 87(2)(b)'s bulky clothing combined with the high-crime nature of the vicinity.

Sgt. Napoleon, PO DeJesus and PO Reyes approached § 87(2)(b) on foot. Sgt. Napoleon could not recall the exact words used to halt § 87(2)(b) and initiate the encounter, but speculated that one of the officers stated something to the effect of, "Sir, how are you doing?" One of the officers – Sgt. Napoleon could not recall which – then frisked § 87(2)(b). Sgt. Napoleon stated that this frisk was conducted for the officers' safety, to ensure that § 87(2)(b) was not carrying any weapons; there were no specific factors leading Sgt. Napoleon to suspect that § 87(2)(b) was armed other than those indicated above. Sgt. Napoleon characterized this frisk as procedure: when an individual is stopped, he is normally frisked at the beginning of the encounter to ensure there are no weapons on his person. § 87(2)(b)'s pockets were not searched.

The officers then asked § 87(2)(b) questions about his presence in the area, his heavy clothing, and the contents of his backpack. Sgt. Napoleon could not recall the precise line of questioning, but stated all of these topics were covered. § 87(2)(b) told the officers that his backpack contained DVD's. The bag was subsequently opened. Sgt. Napoleon initially stated that he probably opened the bag; however, he subsequently stated that he did not remember this specifically, and did not fully recall who opened the bag or whether § 87(2)(b) was asked to consent to the opening of the bag. § 87(2)(a) 160.50

§ 87(2)(b) he was placed under arrest. Sgt. Napoleon could not recall which officer cuffed § 87(2)(b). Sgt. Napoleon stated that § 87(2)(b) was never pushed up against a wall or against the RMP, and that no force was used against § 87(2)(b) at any point in the incident. Sgt.

Napoleon further stated that § 87(2)(b) was physically compliant during the course of the encounter, though he did verbally protest his arrest.

**Subject Officer: PO ALEXIS DEJESUS**

- *Hispanic male, § 87(2)(b) brown hair, brown eyes.*
- *Operation Impact on a tour from 5:30 p.m. on April 7, 2010 until 2:05 a.m. on April 8, 2010, in uniform. At the time of the incident PO DeJesus was in a marked RMP with Sgt. Napoleon and PO Reyes.*

**Memo Book**

PO DeJesus had the following entries in his memo book [Encl. D 7-9]: “0005: male stopped § 87(2)(b) § 87(2)(b) observed with hoodie sweater in 90° weather sila 60 DVDs recovered from def back bag / 92C.”

**Document Statements**

PO DeJesus prepared a Stop & Frisk Report in regards to this incident [Encl. D 10-11].

§ 87(2)(g) the report indicates that the stop occurred at 8:30 p.m. on April 7, 2010. As the first reason for the stop, the report lists: “Wearing clothes/disguises commonly used in commission of crime.” The report also lists the following factors: “Furtive movements,” “Suspicious bulge/object – hands in pocket,” “Area has high incidence of reported offense,” “Time of day/week corresponding to criminal activity,” “Proximity to scene of suspected offense,” “Evasive, false or inconsistent responses to officers questions,” “Changing directions at the sight of officer,” and “Ongoing investigation.”

**CCRB Testimony**

PO DeJesus was interviewed at the CCRB on August 27, 2010 [Encl. D 12-13].

PO DeJesus stated that the officers were inside their vehicle (PO DeJesus was in the back seat) and driving when they first observed § 87(2)(b) PO DeJesus confirmed that the night of the incident was unusually warm, also specifying that it was over 80°F. He stated that § 87(2)(b) was wearing a hooded sweater that appeared thick and heavy (he did not state that § 87(2)(b) was wearing a jacket over the sweatshirt), and that this clothing caused the officers to suspect § 87(2)(b) may have been concealing a weapon. PO DeJesus did not recall who made the decision to stop § 87(2)(b) and did not recall whether he and PO Reyes were acting under direct orders from Sgt. Napoleon to conduct the stop. PO DeJesus stated that there were no factors contributing to the decision to stop § 87(2)(b) other than the suspicion caused by his clothing.

All three officers approached § 87(2)(b) simultaneously. PO DeJesus and PO Reyes primarily conducted the stop, while Sgt. Napoleon stood by to supervise. One of the officers – PO DeJesus could not recall which – initiated the encounter by telling § 87(2)(b) to stop, ordering him not to reach for his pockets, and ordering him to put his hands up. § 87(2)(b) complied with these orders. Either PO DeJesus or PO Reyes then frisked § 87(2)(b) Like Sgt. Napoleon, PO DeJesus stated that the frisk was conducted for the officers’ safety, to ensure that § 87(2)(b) was not armed. PO DeJesus stated that there were no additional factors that led the officers to believe § 87(2)(b) was carrying a weapon. PO DeJesus also characterized this frisk – occurring at the beginning of the encounter in order to ensure a suspect has no weapons – as normal procedure. § 87(2)(b)s pockets were not searched.

After the frisk, the officers asked § 87(2)(b) what he was carrying in his backpack, and § 87(2)(b) replied that he was carrying DVD’s. Either PO DeJesus or PO Reyes then asked, “Can we see them?” and § 87(2)(b) voluntarily opened his backpack. The officers confirmed that the backpack was filled with copied DVD’s, and asked him why he was carrying them. § 87(2)(b)

replied that he sells the DVD's for a living. The officers then placed § 87(2)(b) under arrest for trademark counterfeiting. § 87(2)(b) was placed in the RMP and transported to the stationhouse, at which point the arrest was assigned to PO Kim.

PO DeJesus stated that neither he nor any other officer ever pushed § 87(2)(b) against a wall or RMP, nor did they use any other physical force against him. PO DeJesus further stated that § 87(2)(b) never complained of any injuries or requested medical attention.

At the time of his CCRB interview, PO DeJesus stated that he had not documented the incident in his memo book. § 87(2)(g). However, during his CCRB statement PO DeJesus indicated that § 87(2)(b) was arrested after the DVD's were found in his backpack – § 87(2)(g). PO DeJesus's memo book entries, which indicate that the DVD's were found in a search incident to a lawful arrest.

**Witness Officer: PO RAMON REYES**

- *Hispanic male, § 87(2)(b) black hair, brown eyes.*
- *Operation Impact on a tour from 5:30 p.m. on April 7, 2010 until 2:05 a.m. on April 8, 2010, in uniform. At the time of the incident PO Reyes was in a marked RMP with Sgt. Napoleon and PO DeJesus.*

**Memo Book**

PO Reyes did not document the incident in his memo book [Encl. D 14-15].

**CCRB Testimony**

PO Reyes was interviewed at the CCRB on July 23, 2010 [Encl. D 16-17].

PO Reyes stated that the officers first observed § 87(2)(b) while inside their RMP. He confirmed that the primary reason for the stop was the fact that § 87(2)(b) was wearing a hooded sweatshirt on a hot night. PO Reyes added that there was a robbery pattern in the area at the time involving people being robbed at gunpoint after midnight by two black males, and this contributed to the officers' suspicion that § 87(2)(b) may have been concealing a weapon.

PO Reyes stated that when the officers first began to approach him, § 87(2)(b) began to walk more quickly, though in the same direction. PO Reyes also stated that § 87(2)(b) appeared "surprised" on seeing the officers, but was unable to articulate what generated this impression other than stating it had something to do with § 87(2)(b)'s facial expression. According to PO Reyes, the officers questioned § 87(2)(b) prior to frisking him. Both PO Reyes and PO DeJesus asked § 87(2)(b) questions, but PO Reyes could not recall which questions were asked by which officers. The officers began by asking, "Do you have any weapons on you or anything that could harm us?" When § 87(2)(b) replied that he did not, the officers asked him what he was carrying in his backpack. § 87(2)(b) stated that he was carrying DVD's. PO Reyes then asked, "Can you open the book bag?" § 87(2)(b) opened the backpack, and the officers were able to see he was carrying multiple copied DVD's, which § 87(2)(b) stated he was selling.

At this point Sgt. Napoleon ordered PO Reyes and PO DeJesus to arrest § 87(2)(b). PO DeJesus frisked § 87(2)(b)'s outer clothing to ensure that he had no weapons, then handcuffed him – PO Reyes indicated that the frisk occurred after § 87(2)(b) was already deemed to be under arrest. PO Reyes stated that § 87(2)(b) was never slammed against a wall or RMP, and that no force was used against him. He further stated that § 87(2)(b) never complained of any injuries and never requested medical attention.

**Witness Officer: PO JOHN KIM**

- Asian male, § 87(2)(b) black hair, brown eyes
- Operation Impact on a tour from 5:30 p.m. on April 7, 2010 until 2:05 a.m. on April 8, 2010, with PO Manuel Diclo, in uniform, on foot.

**Memo Book**

PO Kim documented the incident in his memo book with an entry stating: “0005 – 92C inform by PO DeJesus.” PO Kim also made memo book entries corresponding to the completion of each step in the processing of § 87(2)(b) s arrest [Encl. D 18-21].

**Document Statements**

PO Kim prepared § 87(2)(b) s arrest report, which lists the time of arrest as 12:10 a.m. on April 8, 2010. The sole charge § 87(2)(a) 160.50

**CCRB Testimony**

PO Kim was interviewed at the CCRB on July 7, 2010 [Encl. D 18-21].

PO Kim stated that he was not present for the stop or the arrest of § 87(2)(b). While manning a nearby footpost, PO Kim received a radio transmission requesting that he respond to the scene of the arrest. There he encountered Sgt. Napoleon, PO DeJesus, and PO Reyes with § 87(2)(b) already handcuffed and in custody. The officers explained the arrest to PO Kim, at which point he and Sgt. Napoleon drove § 87(2)(b) to the stationhouse (PO Kim recalled PO DeJesus and PO Reyes remaining on the scene on foot). During the course of his interaction with PO Kim, § 87(2)(b) was calm and compliant, did not complain of any injuries, and did not request medical attention.

**Medical Records**

§ 87(2)(a) PBH §18(6)

**NYPD Documents**

The investigation determined that neither a criminal court complaint nor a decline to prosecute form were filed in connection with § 87(2)(b) s arrest [Encl. I 8-9]. § 87(2)(b)

**Other Evidence**

The weather history of April 7, 2010 provided by Weather Underground indicates that, at 11:51 p.m. (shortly before the incident), the temperature was recorded as 79°F. The day had a high temperature, at 3:51 p.m., of 91°F. [Encl. H 1-3.]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

**Status of Civil Proceedings**

As of November 1, 2010, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding this incident.

| Age Group | Percentage of Respondents |
|-----------|---------------------------|
| 18-29     | 90%                       |
| 30-49     | 85%                       |
| 50-64     | 80%                       |
| 65+       | 60%                       |

- § 87(2)(b)
- § 87(2)(b), § 87(2)(g)
- § 87(2)(b)

[illegible]



§ 87(2)(g)

## Investigative Findings and Recommendations

### Allegation A – Abuse of Authority: Sgt. Johnny Napoleon authorized the frisk of § 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

According to the three levels of street interactions established by *People v. De Bour*, 40 N.Y.2d 210 (1976) [Encl. A 1-13], frisking an individual for weapons requires a seizure of that individual. In other words, police may not frisk an individual under a request for information or a common-law inquiry: a frisk signifies that the individual has been stopped. *De Bour*, in accordance with New York State Criminal Procedure Law § 140.50 [Encl. A 14], states that a stop requires reasonable suspicion that the individual in question “is committing, has committed or is about to commit” a crime, and a frisk requires a specific, reasonable belief that the stopped individual is armed and dangerous.

§ 87(2)(g)

the legal definition of innocuous behavior – that which is “susceptible to innocent as well as guilty interpretation,” per *People v. Miller*, 121 A.D.2d 335 (1986) [Encl. A 15-18]. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

### Allegation B – Force: PO Alexis DeJesus used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO DeJesus used gratuitous force against him on two occasions: forcefully pushing him against a wall at the beginning of the encounter with no legitimate purpose, and pushing him into the RMP while handcuffed with no resistance or provocation on his part. All three officers involved in the incident denied that any physical force was used against

§ 87(2)(b) at any point in the incident, and that no officers made contact with him save for to handcuff and escort him to the vehicle. § 87(2)(g)

it is recommended that **Allegation B** be closed as **unsubstantiated**.

**Allegation C – Abuse of Authority: PO Alexis DeJesus searched § 87(2)(b)'s pockets**

§ 87(2)(b) alleged that PO DeJesus, immediately after frisking him, inserted his hands into all of his pockets and removed the objects therein. PO DeJesus denied this, and no other officers acknowledged that such a search occurred. § 87(2)(g)

. It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

**Allegation D – Abuse of Authority: Sgt. Johnny Napoleon authorized the search of § 87(2)(b)'s backpack**

§ 87(2)(b) alleged that PO DeJesus searched his backpack with no prior discussion of its contents and with no request for consent. All officers acknowledged that the bag was opened after § 87(2)(b) stated that it contained DVD's. It is thus undisputed that § 87(2)(b)'s backpack was searched. § 87(2)(g)

Sgt. Napoleon initially stated that he “probably” opened the bag, but could not recall with certainty; PO Reyes stated that § 87(2)(b) was asked, “Can you open the book bag?”; and PO DeJesus stated that § 87(2)(b) was asked, in reference to the bag's contents, “Can we see them?”

§ 87(2)(g)

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(g)

[illegible]

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**Allegation E – Abuse of Authority: PO Alexis DeJesus refused to obtain medical treatment for § 87(2)(b)**

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Page 11  
CCRB Case # 201004720

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Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date